MARSHALL ISLANDS FIRST PREFERRED SHIP MORTGAGE

THIS FIRST PREFERRED MORTGAGE was made and entered on the 27th day of June 2025 by BonBon SX88 LLC, a Florida limited liability company ("Shipowner") with a principal address at 3905 NW 107th Avenue, Suite 501, Miami, Florida, 33178, USA, in favor of Grasshopper Bank, N.A. of 261 5th Avenue, Suite 610, New York, New York 10016 USA ("Mortgagee").

RECITALS

WHEREAS:

(A) The Shipowner is the sole, absolute, and (save for the security interests created pursuant to this Mortgage) unencumbered owner of the whole (100%) of the Marshall Islands flag private yacht, "BON BON" - one 2020 22.74m Sanlorenzo S.p.A "SANLORENZO SX88" motor yacht bearing Hull Identification Number SLZ00029J920 and Official Number 72060, along with its tender, personal watercraft, and inventory ("Vessel"). "Vessel" which term means the whole of the Vessel described herein and includes her engines, machinery, boats, boilers, masts, rigging, anchors, chains, cables, apparel, tackle, outfit, spare gear, fuel, consumables, freight, furniture, capstans, outfits, tools, pumping, and other equipment, and all other appurtenances, and all additions, improvements, and replacements hereafter made in or to the said Vessel, or any part thereof, or in or to the stores, belongings, and appurtenances aforesaid).

(B) Pursuant to a Marine Promissory Note and Security Agreement dated the 27th day of June 2025 ("Note") between the Shipowner, as Borrower, and the Mortgagee, as Lender, the Mortgagee has made an advance to the Shipowner in the principal amount of Two Million Five Hundred Thousand and 00/00 United States Dollars (USD$2,500,000.00 ("Loan"). The date of maturity is the 18th day of June 2045. A copy of the Note is annexed as Schedule 1 hereto and made a part hereof.

(C) The Shipowner, in order to secure the repayment of the Loan and interest thereon and the performance and observance of and compliance with the covenants, terms, and conditions in the Note and this Mortgage contained, has duly authorized the execution and delivery of this First Preferred Marshall Islands Mortgage under and pursuant to the Chapter 3 of the Maritime Act 1990 of the Republic of The Marshall Islands, as amended ("Maritime Act").

NOW, THEREFORE, THIS MORTGAGE WITNESSETH:

That in consideration of the premises and of the sums loaned and to be loaned as above recited and of other good and valuable consideration, the receipt whereof is hereby acknowledged, and in order to secure the payment of amounts due under the Note in accordance with the terms thereof, and the payment of all such other sums as may hereafter become secured by this Mortgage in accordance with the terms hereof, and to secure the performance and observance of and compliance with the covenants, terms and conditions herein and in the Note, the Shipowner does by these presents grant, convey, mortgage, pledge, assign, transfer, set over, charge and confirm the whole (100%) of the Vessel unto the Mortgagee, their respective successors and assigns, together with all of the boilers, engines, machinery, masts, spars, rigging, boats, anchors, chains, cables, tackle, apparel, furniture, fittings and equipment and all other appurtenances to the Vessel appertaining or belonging, whether now owned or hereafter acquired, whether on board or not, and all additions, improvements and replacements hereafter made in or to the Vessel, or any part thereof, or in or to the equipment and appurtenances aforesaid. This First Preferred Marshall Islands Mortgage shall be a first priority mortgage on the whole of the Vessel.

For purposes of recording this First Preferred Ship Mortgage as required by Section 302 of the Marshall Islands Maritime Act, 1990, as amended, the amount secured by this Mortgage is the total amount of the direct or contingent obligations secured by this Mortgage is Two Million Five Hundred Thousand and 00/100 United States Dollars (USD$2,500,000.00) plus interest, premiums and performance of mortgage covenants. The date of maturity is the 18th day of June 2045, and there is no separate discharge amount. This Mortgage shall be governed by and construed in accordance with the laws of the Republic of the Marshall Islands.

The rights of the Mortgagee hereunder shall remain in full force and effect until the Shipowner shall pay or cause to be paid to the Mortgagee the aggregate of the Loan, all interest accrued on the Loan, and all other sums of money whatsoever from time to time due or owing actually or contingently to the Mortgagee under or pursuant to the Loan Documents, as and when the same shall become due and payable in accordance with the terms of this Mortgage and the other Loan Documents.

The Shipowner shall at all times perform and comply with the terms, conditions, and obligations in this Mortgage and the other Loan Documents contained, expressed, or implied to be performed or complied with by and on the part of the Shipowner.

Notwithstanding anything to the contrary herein, it is not intended that any provision of this Mortgage shall waive the preferred status of this Mortgage, and if any provision or part thereof herein shall be construed as waiving the preferred status of this Mortgage, then such provision shall to such extent be void and of no effect.

TO HAVE AND TO HOLD the same unto the Mortgagee, its successors and assigns, forever, upon the terms herein set forth for the enforcement of the payment of the Note and to secure the performance and observance of and compliance with the covenants, terms, and conditions in this Mortgage and in the Note.

PROVIDED, ONLY, and the conditions of these presents are such, that if the Shipowner or its successors or assigns shall pay or cause to be paid to the Mortgagee the principal of the indebtedness aforesaid and interest thereon as and when the same shall become due and payable in accordance with the terms of this Mortgage and of the Note and all other such sums as may hereafter become secured by this Mortgage in accordance with the terms hereof, and the Shipowner shall perform, observe and comply with all the covenants, terms and conditions in the Note and in this Mortgage, expressed or implied, to be performed, then these presents and the rights hereunder shall cease, determine and be void, otherwise to be and remain in full force and effect.

IT IS HEREBY COVENANTED, DECLARED, AND AGREED that the property above described is to be held subject to the further covenants, conditions, provisions, terms, and uses hereinafter set forth.

ARTICLE I - COVENANTS OF THE SHIPOWNER

The Shipowner covenants and agrees with the Mortgagee as follows:

Section 1. The Shipowner will pay the indebtedness evidenced as aforesaid and interest thereon, and the Shipowner will observe, perform, and comply with each and every one of the covenants, terms, and conditions herein and in the Note, expressed or implied, on its part to be observed, performed or complied with.

Section 2. The Shipowner was duly organized and now exists as a limited liability company under the laws of the state of Florida and shall so remain during the life of this Mortgage; it is duly authorized to mortgage the Vessel; all corporate action necessary and required by law for the execution and delivery of this Mortgage has been duly and effectively taken, and the Note in the hands of the holder thereof will be the valid and enforceable obligation of the Shipowner in accordance with the respective terms thereof.

Section 3. The Shipowner lawfully owns and is lawfully possessed of the Vessel free from any security interest, lien, charge, or encumbrance whatsoever, or any commitment to make the Vessel available for charter or sale, or use by any governmental authority, other than (i) this Mortgage, and (ii) as permitted under Section 9 hereof. The Shipowner will warrant and defend the title to, and the lawful possession of, the Vessel, and every part thereof, for the benefit of the Mortgagee against the claims and demands of all persons whomsoever.

Section 4. The Shipowner will comply with and satisfy all the provisions of the Maritime Act, at any time amended, in order to maintain the due documentation of the Vessel in the name of the Shipowner thereunder and to establish and maintain this Mortgage as a first preferred mortgage thereunder upon the Vessel and upon all renewals, improvements, and replacements made in or to the same.

Section 5. The Shipowner will not cause or permit the Vessel to be operated in any manner contrary to law, will not abandon the Vessel in a foreign port, will not engage in any unlawful trade or violate any law or carry any cargo that will expose the Vessel to penalty, forfeiture or capture, and will not do, or suffer or permit to be done, anything which can or may injuriously affect the registration of the Vessel under the laws and regulations of the Republic of The Marshall Islands and will at all times keep the Vessel duly registered thereunder.

Section 6. The Shipowner will pay and discharge when due and payable, from time to time, all taxes, assessments, governmental charges, fines, and penalties lawfully imposed on the Vessel or any income therefrom, unless the same are being contested in good faith, adequate reserves have been established on the books of the Shipowner with respect thereto, and there exists no danger of arrest or forfeiture of the Vessel by reason of the non-payment thereof.

Section 7. Neither the Shipowner, any charterer, the Master of the Vessel, nor any other person, has or shall have any right, power, or authority to create, incur, or permit to be placed or imposed or continued upon the Vessel, any lien whatsoever other than this Mortgage and what is allowed under the Marshall Islands Maritime Act 1990, as amended.

Section 8. The Shipowner will place, and at all times and places will retain, a properly certified copy of this Mortgage on board the Vessel with her papers and will cause such certified copy and such papers to be exhibited to any and all persons having business therewith which might give rise to any lien thereon other than liens for crew's wages and salvage, and to any representative of the Mortgagee.

Section 9. Except for the lien of this Mortgage and liens for current crew wages and salvage and for other trade indebtedness incurred in the ordinary course of business (which in the aggregate shall not exceed USD$25,000.00 at any time), the Shipowner will not create or suffer to be continued any security interest, lien, encumbrance or charge on the Vessel or any income therefrom and in due course and in any event within thirty (30) days after the same becomes due and payable will pay or cause to be discharged or make adequate provision for the payment or discharge of all claims or demands which, if not paid or discharged, might result in the creation of such a security interest, lien, encumbrance or charge and will cause the Vessel to be released or discharged from each such security interest, lien, encumbrance or charge therefor.

Section 10. If any judicial action is commenced against the Vessel or if the Vessel is otherwise attached, levied upon, or taken into custody or detained by any proceeding in any court or tribunal or by any government or other authority, the Shipowner will promptly notify the Mortgagee in accordance with Section 33 hereof and within ten (10) days will cause the Vessel to be released and all liens thereon other than this Mortgage to be discharged, and will promptly notify the Mortgagee thereof in the manner aforesaid.

Section 11. So long as this Mortgage shall remain outstanding, the Shipowner will not transfer or change the flag or port of documentation of the Vessel without the written consent of the Mortgagee first being obtained, and any such written consent to any one transfer or change of flag or port of documentation shall not be construed to be a waiver of this provision with respect to any subsequent proposed transfer or change of flag or port of documentation.

Section 12. The Shipowner will at all times and without cost or expense to the Mortgagee maintain and preserve, or cause to be maintained and preserved, the Vessel in good running order and repair so that the Vessel shall be, in so far as due diligence can make her so, tight, staunch, strong and well and sufficiently tackled, appareled, furnished, equipped and in every respect seaworthy and in good operating condition. The Vessel shall, and the Shipowner covenants that it will, at all times comply with all applicable laws, treaties, and conventions of the Republic of The Marshall Islands, and rules and regulations issued thereunder, and shall have on board as and when required thereby valid certificates showing compliance therewith. The Shipowner shall give the Mortgagee ten (10) days prior written notice of any drydocking so as to afford the Mortgagee an opportunity to be present and inspect the Vessel. The Shipowner agrees that at the Mortgagee's request, the Shipowner shall satisfy the Mortgagee that the expense of such drydocking or work to be done in connection therewith is within the Shipowner's financial ability and will not result in a claim or lien in violation of this Mortgagee. The Shipowner will not make, or permit to be made, any substantial change in the structure, type, and speed of the Vessel or change in any of the Vessel's configuration, without first receiving the written approval thereof by the Mortgagee.

Section 13. The Shipowner, at all times, will afford the Mortgagee or its representatives full and complete access to the Vessel for the purpose of inspecting the same and the Vessel's papers and, at the request of the Mortgagee, the Shipowner will deliver for inspection copies of any and all contracts and documents relating to the Vessel, whether on board or not. If the Mortgagee discovers upon inspection that, in its opinion, the Vessel is in a condition of disrepair that materially impacts the value of the Vessel, the Mortgagee shall have the immediate right to call for the docking and repair of the Vessel at the Shipowner's cost and to the satisfaction of the Mortgagee.

Section 14. The Shipowner will not sell, mortgage, transfer, charter (by demise or otherwise), or change the management of, the Vessel without the written consent of the Mortgagee first being obtained, and any such written consent to any one such sale, mortgage, transfer, charter or change shall not be construed to be a waiver of this provision with respect to any subsequent proposed sale, mortgage, transfer, charter or change. Any such sale, mortgage, transfer, charter, or change of the Vessel shall be subject to the provisions of this Mortgage and the lien it creates.

Section 15. The Shipowner will, at its own expense, when and so long as this Mortgage or the Note shall be outstanding, insure the Vessel and keep her insured for an amount not less than the full market value of the Vessel and in no event for an amount less than One Hundred and Ten percent (110%) of the unpaid principal amount of the Note outstanding from time to time. The Vessel shall in no event be insured for an amount less than the agreed valuation as set forth in the applicable marine risk policies. The policy or policies of insurance shall be issued by responsible underwriters acceptable to the Mortgagee, shall contain the conditions, terms, deductible amounts, stipulations, and insuring covenants satisfactory to the Mortgagee, and shall be kept in full force and effect by the Shipowner so long as this Mortgage or the Note shall be outstanding. A copy of such insurance shall be furnished to the Mortgagee. The Shipowner will renew the insurance at least thirty (30) days before the relevant policies or contracts expire.

All insurance shall be taken out in the name of the Shipowner, with Mortgagee as an additional insured and as the named loss payee. The insurance must be written for at least one year at a time. All policies, binders, cover notes, and all renewals thereof shall be delivered to Mortgagee with evidence satisfactory to it that all premiums and other charges, therefore, have been fully paid. Shipowner shall obtain and provide written proof to Mortgagee of underwriters' commitment to provide Mortgagee with not less than fifteen (15) days written notice prior to non-renewal, cancellation, or material change of said insurance coverage.

Shipowner hereby appoints Mortgagee and its employees and agents as its attorney-in-fact to sign any proof of loss and endorse any form of loss payment. Mortgagee may either use the proceeds of the insurance to repair the Vessel, or apply the proceeds as provided herein to reduce the Obligations. If Shipowner fails to perform such obligation, Mortgagee is authorized (but not obligated) to procure the insurance, and any amounts which it has to pay therefor shall be included in the Obligations secured by this Agreement, and such amounts shall be repaid in full to Mortgagee upon demand, together with interest at the Default Rate specified in the Note.

Section 16. The Shipowner will reimburse the Mortgagee on demand, with interest at a rate of 10% per annum, for any and all expenditures which the Mortgagee may from time to time make, lay out, or expend in providing such protection in respect of insurance, discharge or purchase of liens, taxes, dues, assessments, governmental charges, fines and penalties lawfully imposed, repairs, attorneys' fees, and other matters as the Shipowner is obligated herein to provide, but fails to provide. Such obligation of the Shipowner to reimburse the Mortgagee shall be an additional indebtedness due from the Shipowner, secured by this Mortgage, and shall be payable by the Shipowner on demand. The Mortgagee, though privileged to do so, shall be under no obligation to the Shipowner to make any such expenditures, nor shall the making thereof relieve the Shipowner of any default in that respect.

ARTICLE II
EVENTS OF DEFAULT AND REMEDIES

Section 17. In case any one or more of the following events ("Events of Default") shall occur and shall not have been remedied:

(a) Default in the payment of the whole or any part of the Loan or interest thereon or of any other sum owing by the Shipowner to the Mortgagee when and as the same shall become due and payable as in the Note and herein provided, whether at maturity, by acceleration or otherwise; or

(b) Default in the due and punctual observance and performance of any provision of Sections 4, 5, 8, 9, 10, 13, 14, 15, or 16 hereof; or

(c) Default in the due observance or performance of any of the other covenants and conditions herein required to be kept and performed by the Shipowner and continuance of such default for ten (10) days; or

(d) An Event of Default under the Note shall have occurred and shall not have been remedied;

Then and in each and every such case, the Mortgagee shall have the right to:

(1) Declare the Note to be due and payable immediately, and upon such declaration, the entire unpaid principal of and interest on the Note to date of the declaration shall become and be immediately due and payable, and thereafter shall bear interest at a rate per annum (based on a year of 360 days and the actual number of days elapsed) equal to the Default Rate;

(2) Exercise all the rights and remedies in foreclosure and otherwise given to Mortgagee by the provisions of the Maritime Act, as at any time amended;

(3) Bring suit at law, in equity or in admiralty, as they may be advised, to recover judgment for any and all amounts due under the Note, or otherwise hereunder, and collect the same out of any and all property of the Shipowner whether covered by this Mortgage or otherwise;

(4) Take the Vessel, wherever the same may be, without legal process and without being responsible for loss or damage; and the Shipowner or other person in possession forthwith upon demand of the Mortgagee shall surrender to the Mortgagee possession of the Vessel, as demanded by the Mortgagee, and the Mortgagee may, without being responsible for loss or damage, hold, lay up, lease, charter, operate or otherwise use the Vessel for such time and upon such terms as it may deem to be for its best advantage, accounting only for the net profits, if any, arising from such use and charging upon all receipts from such use or from the sale of the Vessel by court proceedings or pursuant to Subsection (5) next following, all costs, expenses, charges, damages or losses by reason of such use; and if at any time the Mortgagee shall avail itself of the right herein given it to take the Vessel and shall take it, the Mortgagee shall have the right to dock the Vessel for a reasonable time at any dock, pier or other premises of the Shipowner without charge, or to dock it at any other place at the cost and expense of the Shipowner;

(5) Without being responsible for loss or damage, where it has acted reasonably and in good faith, sell the Vessel at any place and at such time as the Mortgagee may specify and in such manner as the Mortgagee may deem advisable, free from any claim by the Shipowner in admiralty, in equity, at law or by statute.

Section 18. A sale of the Vessel made in pursuance of this Mortgage, whether under the power of sale hereby granted or any judicial proceedings, shall operate to divest all right, title, and interest of any nature whatsoever of the Shipowner therein and thereto, and shall bar the Shipowner, its successors and assigns, and all persons claiming by, through or under them. No purchaser shall be bound to inquire whether notice has been given, or whether any default has occurred, or as to the propriety of the sale, or as to the application of the proceeds thereof. In case of such sale, any purchaser who is the holder of a Note shall be entitled, for the purpose of making settlement or payment for the property purchased, to use and apply the unpaid balance of such Note and all other sums secured hereby in order that there may be credited against the amount remaining due and unpaid thereon the sums payable out of the net proceeds of such sale to the holder of such Note after allowing for the costs and expense of sale and other charges; and thereupon such purchaser shall be credited, on account of such purchase price, with the net purchase price that shall have been so credited upon such Note. At such sale, the holder of such Note may bid for and purchase such property, and upon compliance with the terms of sale, may hold, retain, and dispose of such property without further accountability therefor.

Section 19. The Mortgagee is hereby appointed attorney-in-fact of the Shipowner to execute and deliver to any purchaser aforesaid, and is hereby vested with full power and authority to make, in the name and but on behalf of the Shipowner, good conveyance of the title to the Vessel so sold. In the event of a sale of the Vessel, the Shipowner will, if and when required by the Mortgagee, execute such form of conveyance of the Vessel as the Mortgagee may direct or approve.

Section 20. The Mortgagee is hereby appointed attorney-in-fact of the Shipowner, upon the happening of any Event of Default specified in Section 17, in the name of the Shipowner to demand, collect, receive, compromise and sue for, so far as may be permitted by law, all freights, hire, earnings, issues, revenues, income and profits of the Vessel, and all amounts due from underwriters under any insurance thereon as payment of losses or as return premiums or otherwise, salvage awards and recoveries, recoveries in general average or otherwise, and all other sums due or to become due at the time of the happening of any Event of Default in respect of the Vessel, or in respect of any insurance thereon from any person whomsoever, and to make, give and execute in the name of the Shipowner acquittances, receipts, releases or other discharges for the same, whether under seal or otherwise, and to endorse and accept in the name of the Shipowner all checks, notes, drafts, agreements and all other instruments in writing with respect to the foregoing.

Section 21. Whenever any right to enter and take possession of the Vessel accrues to the Mortgagee, it may require the Shipowner to deliver, and the Shipowner shall, on demand, at its own cost and expense, deliver to the Mortgagee the Vessel as demanded. If any legal proceedings are taken to enforce any right under this Mortgage, the Mortgagee shall be entitled as a matter of right to the appointment and/or removal of a receiver or receiver and manager or administrative receiver ('Receiver") of the whole or any part of the Vessel and the freights, hire, earnings, issues, revenues, income and profits due or to become due and arising from the operation thereof.

A Receiver so appointed shall be the agent of the Shipowner, who shall be solely liable for its remuneration, costs, charges, and expenses and for his acts and defaults. Such Receiver shall have the power to trade, operate, lay-up, charter, lease and/or sell the Vessel without further notice to the Shipowner and/or without the need to advertise same and/or to consolidate this Mortgage with any other mortgage or mortgages (as the case may be) that the Shipowner may grant in favor of the Mortgage, without the restriction, and, in addition, shall have the power, on behalf of and at the cost of the Shipowner, to do or omit to do anything which the Shipowner could do or omit to do in relation to the property hereby charged, and to exercise all the rights, powers and remedies of the Mortgagee under this Mortgage, for which purpose the benefit of all the immunities and limitations of liability conferred on the Mortgagee by this Mortgage shall extend to the Receiver and its servants and agents.

Any Receiver so appointed shall be entitled to remuneration appropriate to the work and responsibilities involved upon the basis of charging adopted by the Receiver in accordance with the current practices of their firm. The Mortgagee shall be under no liability to the Receiver for their remuneration, costs, charges, or expenses or otherwise.

The Shipowner shall indemnify and keep the Mortgagee and any Receiver indemnified against all costs, charges, expenses, claims, proceedings (whether civil or criminal), liabilities, losses, damages, injury (personal or economic), penalties, fines, duties and fees (including, but not limited to, legal fees and expenses on a full indemnity basis) and taxes thereon suffered or incurred by the Mortgagee or such Receiver for any reason and whether sustained or incurred during or after the Loan has been repaid in full:

(a) arising directly or indirectly in any manner out of the ownership, possession, management, control, chartering, sub-chartering, navigation, victualling, fuelling, manning, supply, insurance, use, operation, laying-up or storage of or loss of or damage to the Vessel or any part thereof or from any maintenance, service, modification, repair, classification or overhaul of, or otherwise in connection with, the Vessel or any part thereof and regardless of when the same shall arise and whether or not the Vessel or the relevant part thereof is in the possession or control of the Shipowner;

(b) because of any design, article, or material of, on, or in the Vessel or any part thereof or relating thereto, whether because of infringement of patent, copyright, design, trademark, or other rights or otherwise;

(c) relating to or arising directly or indirectly in any manner or for any cause or reason whatsoever out of an environmental claim or asserted against the Mortgagee and/or the Vessel, or out of any actual or threatened environmental incident relating to the Vessel;

(d) in taking possession of the Vessel or detaining the Vessel in connection with the enforcement of rights under the Loan Documents;

(e) which arise out of any act or omission which invalidates or which renders voidable any of the Insurances;

(f) which arise in relation to preventing or attempting to prevent the arrest, confiscation, seizure, taking in execution, impounding, forfeiture, or detention of the Vessel or any part thereof, or in securing its release; or

(g) arising out of any act or omission made by the Mortgagee in good faith in connection with the Vessel or in connection with any of the matters dealt with in the Loan Documents.

Section 22. The Shipowner authorizes and empowers the Mortgagee, any Receiver, or their respective appointees or any of them to appear in the name of the Shipowner, its successors and assigns, in any court of any country or nation of the world where a suit is pending against the Vessel because of or on account of any alleged lien against the Vessel from which the Vessel has not been released and to take such proceedings as to them or any of them as may seem proper towards the defense of such suit and the purchase or discharge of such lien, and all expenditures made or incurred by them or any of them for the purpose of such defense, purchase or discharge shall be a debt due from the Shipowner, its successors and assigns, to the Mortgagee, and shall be secured by the lien of this Mortgage in like manner and extent as if the amount and description thereof were written herein.

Section 23. The Shipowner covenants that upon the happening of any of the Events of Default specified in clause (a) of Section 17, then, upon written demand of the Mortgagee, the Shipowner will pay to the Mortgagee the whole amount due and payable on the Note; and in case the Shipowner fails to pay the same forthwith upon such demand, the Mortgagee shall be entitled to recover judgment for the whole amount so due and unpaid, together with such further amounts as shall be sufficient to cover the reasonable costs and expenses of collection, including reasonable compensation to the Mortgagee's agents, attorneys and counsel and any necessary advances, expenses and liabilities made or incurred by them hereunder. All amounts of money collected by the Mortgagee under this Section 23 shall be applied by the Mortgagee in accordance with the provisions of Section 27 hereof.

Section 24. Each and every power and remedy herein given to the Mortgagee and/or any Receiver shall be cumulative and shall be in addition to every other power and remedy herein given or now or hereafter existing at law, in equity, in admiralty, or by statute, and each and every power and remedy whether herein given or otherwise existing may be exercised from time to time and as often and in such order as may be deemed expedient by the Mortgagee and/or any Receiver, and the exercise or the beginning of the exercise of any power or remedy shall not be construed to be a waiver of the right to exercise at the same time or thereafter any other power or remedy.

No delay or omission by the Mortgagee, any Receiver, or by the holder of a Note in the exercise of any right or power or in the pursuance of any remedy accruing upon any default or Event of Default specified in Section 17 hereof shall impair any such right, power or remedy or be construed to be a waiver of any such default or Event of Default or to be an acquiescence therein; nor shall the acceptance by the Mortgagee or any Receiver of any security or of any payment of or on account of any part of the Note maturing after any default or event of default or of any payment on account of any past default be construed to be a waiver of any right to take advantage of any future Event of Default or of any past Event of Default not completely cured thereby.

To the fullest extent that it may lawfully so agree, the Shipowner covenants and agrees that it shall not at any time insist upon, claim, plead, or take the benefit or advantage of any appraisement, valuation, stay, extension, moratorium, or redemption law now or hereafter in force to prevent, delay or hinder the enforcement of this Mortgage or the exercise by the Mortgagee and/or any Receiver of any of the remedies set forth in Section 18 or the taking of possession of the Vessel by any purchaser at any sale held pursuant to this Mortgage; and the Shipowner, for itself and all for whom it may lawfully do so, hereby waives the benefit of all such laws.

Section 25. If at any time after an Event of Default and prior to the actual sale of the Vessel by the Mortgagee or prior to any foreclosure proceedings, the Shipowner offers to cure all Events of Default completely and to pay all expenses, advances, and damages to the Mortgagee consequent on such Events of Default, with interest at the Default Rate, then the Mortgagee may accept such offer and restore the Shipowner to its former position, but such action shall not affect any subsequent Event of Default or impair any rights consequent thereon.

Section 26. In case the Mortgagee shall have proceeded to enforce any right, power, or remedy under this Mortgage by foreclosure, entry, or otherwise, and such proceeding shall have been discontinued or abandoned for any reason or shall have been determined adversely to the Mortgagee, then and in every such case the Shipowner and the Mortgagee shall be restored to their former positions and rights hereunder with respect to the property subject or intended to be subject to this Mortgage, and all rights, remedies, and powers of the Mortgagee shall continue as if no such proceedings had been taken.

Section 27. The proceeds of the sale of the Vessel and the net earnings of any charter operation or other use thereof by the Mortgagee or any Receiver under any of the powers herein specified pursuant to or under the terms of this Mortgage or in any proceedings hereunder, the application of which has not elsewhere herein been specifically provided for, shall be applied as follows:

FIRST: To the payment of all expenses and charges, including the expenses of any sale, the expenses of any retaking, attorneys' fees, court costs, and any other expenses or advances made or incurred by the Mortgagee or any Receiver in the protection of their rights or the pursuance of their remedies hereunder, and to provide adequate indemnity against liens claiming priority over or equality with the lien of this Mortgage;

SECOND: To the payment of the Note and all other sums secured hereby, whether due or not, together with interest thereon;

THIRD: To the payment of any surplus thereafter remaining to the Shipowner or to whomsoever may be entitled thereto.

Section 28. Until one or more of the Events of Default specified in Section 17 shall happen, the Shipowner (a) shall be suffered and permitted to retain actual possession and use of the Vessel and (b) shall have the right, from time to time, in its discretion, and without application to the Mortgagee, and without obtaining a release thereof by the Mortgagee, to dispose of, free from the lien hereof, any boilers, engines, machinery, bowsprits, masts, spars, rigging, boats, anchors, cables, chains, tackle, apparel, furniture, fittings or equipment or any other appurtenances to the Vessel that are no longer useful, necessary, profitable or advantageous in the operation of the Vessel, first or simultaneously replacing the same by new boilers, engines, machinery, bowsprits, masts, spars, rigging, boats, anchors, chains, cables, tackle, apparel, furniture, fittings, equipment or other appurtenances of substantially equal value to the Shipowner which shall forthwith become subject to the lien of this Mortgage as a first preferred mortgage thereon.

ARTICLE III SUNDRY PROVISIONS

Section 29. For purposes of recording this First Preferred Ship Mortgage as required by Section 302 of the Marshall Islands Maritime Act, 1990, as amended, the amount secured by this Mortgage is the total amount of the direct or contingent obligations secured by this Mortgage is Two Million Five Hundred Thousand and 00/100 United States Dollars (USD$2,500,000.00 and interest thereon, costs, expenses, fees, indemnities, reimbursements and performance of mortgage covenants. The date of maturity is the 18th day of June 2045, and there is no separate discharge amount.

Section 30. All the covenants, promises, stipulations, and agreements of the Shipowner in this Mortgage contained shall bind the Shipowner and its successors and assigns and shall inure to the benefit of the Mortgagee and its successors and assigns.

Section 31. Wherever and whenever herein any right, power, or authority is granted or given to the Mortgagee, such right, power, and authority may be exercised in all cases by the Mortgagee or such agent or agents as it may appoint, and the act or acts of such agent or agents when taken shall constitute the act of the Mortgagee hereunder.

Section 32. If any one or more of the provisions of this Mortgage should at any time for any reason be declared invalid, void, or otherwise inoperative by a competent court of competent jurisdiction, such declaration or decision shall not affect the validity of any other provision or provisions of this Mortgage or the validity of this Mortgage as a whole.

Section 33. This Mortgage shall be governed by and construed in accordance with the laws of the Republic of the Marshall Islands. Any legal action or proceeding with respect to this Mortgage or any related document may be brought in the courts of the State of Florida or the Federal Courts of the United States for the Southern District of Florida, and by execution and delivery of this Agreement, the Shipowner and Mortgagee consent to the non-exclusive jurisdiction of those courts. The Shipowner and Mortgagee irrevocably waive any objection, including any objection to the laying of venue or based on the ground of forum non-conveniens, which it may now or hereafter have to the bringing of any action or proceeding in such jurisdiction in respect of this Mortgage or any document related hereto. Notwithstanding the foregoing, (i) the Mortgagee shall have the right to bring any action or proceeding against the Owner, any Guarantor, or their property in the courts of any other jurisdiction the Shipowner may deem necessary and appropriate in order to enforce its rights and remedies under this Mortgage, the Loan Documents, or any related documents, and (ii) the Shipowner and Mortgagee each acknowledge that any appeals from the aforesaid courts may have to be heard by a court located outside the jurisdiction of such courts.

Section 34. All notices, requests, and demands under this Mortgage shall be given in writing or by telefacsimile and shall be delivered, e-mailed, or transmitted as follows:

Notices to Shipowner should be sent to:

BonBon SX88 LLC, a Florida limited liability company
3905 NW 107th Avenue, Suite 501, Miami, Florida, 33178 USA

Notices to Mortgagee should be sent to:

Grasshopper Bank, N.A.
261 5th Avenue, Suite 610, New York, New York 10016 USA

or to such other address as any party to receive such communication may designate by written notice to the other parties.

Section 35: Mortgagee agrees that upon full and final payment of the Note, Loan Documents, and any other outstanding indebtedness by the Owner or the Guarantors to the Mortgagee in accordance with the terms of the Note or Loan Documents, the Mortgagee will, upon demand promptly execute and deliver to the Shipowner a proper instrument of satisfaction or release of this Mortgage in recordable form under the laws of the Republic of the Marshal Islands.

Section 36. Words and expressions defined in the Note shall, unless otherwise expressly provided herein or the context otherwise requires, have the same meanings when used in this Mortgage, including the recitals.

[SIGNATURE PAGE TO FOLLOW]

IN WITNESS WHEREOF, the Shipowner has executed this Marshall Islands First Preferred Ship Mortgage on the day and year first above written.

SHIPOWNER/BORROWER: BONBON SX88 LLC

SIGN HERE

By: ________________________
Name: Benito Irastorza
Title: Manager

STATEMENT OF WITNESS

Benito Irastorza, as Manager of BonBon SX88 LLC, a Florida limited liability company, declared to me in my presence that the foregoing instrument is his Special and Limited Power of Attorney. Benito Irastorza is over the age of 18, and in the respective opinion of the undersigned is mentally and physically competent to sign the foregoing Special and Limited Power of Attorney. In my presence, he freely and voluntarily executed this instrument for purposes therein expressed.

WITNESS 1	**WITNESS 2**
By: ____________	By: ____________
Name: Cristina Padrino	Name: Sara L. Cortes

NOTARY ACKNOWLEDGMENT

STATE OF Florida   COUNTY OF Miami Dade

The foregoing instrument was acknowledged before me by means of ☑ physical presence or ☐ online notarization, this 27th day of June 2025, by Benito Irastorza, as the Manager of BonBon SX88 LLC, a Florida limited liability company.

____
(Signature of Notary Public - State of Florida)

Juan C Valdes
(Print, Type, or Stamp Commissioned Name of Notary Public)

☒ Personally Known -OR- ☐ Produced Identification

JUAN C. VALDES
MY COMMISSION # HH 266146
EXPIRES: August 13, 2026

Type of Identification Produced ____________________

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SIGN HERE

By: ____________________
Name: Benito Irastorza
Title: Manager

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